



SPONSOR: Rep. Kamela Smith & Sen. Huxtable
Reps. Chukwuocha, K. Johnson, Ross Levin, Snyder-
Hall, Carson, Berry

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 231

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO UNIFORM HEALTH DATA.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 20, Title 16 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 Chapter 20. UNIFORM HEALTH DATA

4 § 2002. Definitions.

5 The following words, terms and phrases, when used in this chapter, shall have meaning ascribed to them in this
6 section, except where the context indicates a different meaning:

7 (1) "Delaware uniform claims and billing data set" ~~shall-mean~~ means that data approved for use by the State
8 Uniform Billing Committee.

9 (2) "Hospital" ~~shall-mean~~ means any nonfederal facility licensed as such pursuant to Chapter 10 of this title.

10 (3) "Individual" ~~shall-mean~~ means a singular human being.

11 (4) "Nursing home" ~~shall-mean~~ means any and all rest residential, assisted living facility, skilled care or
12 intermediate nursing facility licensed pursuant to Chapter 11 of this title.

13 (5) "Person" ~~shall-mean~~ means an individual, trust or estate, a partnership, a corporation (including
14 associations, joint stock companies and insurance companies), or a state or political subdivision or instrumentality
15 (including a municipal corporation) of a state.

16 (6) "Raw data" ~~shall-mean~~ means any information collected pursuant to this chapter which has not been
17 approved for release by the state agency.

18 (7) "State agency" ~~shall-mean~~ means the Division of Public Health within the Department of Health and
19 Social Services. The Division of Public Health shall serve as the designated statistical agency under Public Law 95-
20 623 for data analysis and statistical research related to the National Center for Health Statistics activities and for the
21 designation of Health Manpower Shortage Areas (HMSAs) and Medically Underserved Areas (MUAs) by the U.S.
22 Department of Health and Social Services.

(8) "Third-party payers" ~~shall mean~~ means any person authorized to transact health insurance or to engage in the business of a health service corporation in this State.

§ 2003. Duties and authority of state agency.

(a) The state agency shall compile, correlate, analyze and develop data which it collects pursuant to this chapter. The state agency shall prepare and distribute or make available reports to health-care purchasers, health-care insurers, health-care providers and the general public. The data shall be collected in the most efficient and cost-effective manner. Data collected shall be limited to that contained in the Delaware uniform claims and billing data set (~~UB-82~~ UB-04 or successor form).

(b) The state agency shall periodically compile and disseminate reports on the data collected such as, ~~but not limited to:~~ as charge levels, age-specific utilization patterns, morbidity patterns, patient origin and trends in health-care charges. Prior to release or dissemination of any compilations, the state agency shall provide a specified time period for hospitals and nursing homes to review the information they have submitted and to submit corrections. The state agency shall incorporate any valid corrections prior to release. Hospitals and nursing homes shall have the right to provide independent data interpretation which shall be disseminated along with the report.

(d) The state agency shall establish the Hospital Discharge Technical Advisory Committee to study issues such as the collection, compilation, dissemination and confidentiality of data ~~with regard to~~ regarding hospital discharge and emergency department data reporting. The Committee shall be comprised of 9 members. These members shall include hospital and nursing home representatives from the Delaware Healthcare Association and the Delaware Health Care Facilities Association. The members shall be appointed by the Secretary of the Department of Health and Social Services. Members shall serve a 3-year term and are eligible for reappointment. The state agency may establish other committees as deemed appropriate.

§ 2004. Reporting requirements.

(a) The Delaware uniform claims and billing data set (~~UB-82~~ UB-04 or successor form) shall be completed for all hospital inpatient discharges and emergency department visits. ~~and shall be submitted by all~~

(b) All hospitals must submit data electronically to the state agency according to a schedule established pursuant to subsection ~~(d)~~(e) of this ~~section~~ section, through the state agency's Secure File Transfer Protocol (SFTP), in the format agreed upon by the state agency and the Delaware Healthcare Association. All third-party payers shall be required to accept this uniform claims and billing form. ~~The state agency shall recognize the capabilities of each hospital in specifying the medium or mediums to be used in submitting data (hard copy, data tape or other appropriate electronic media).~~

52 ~~(b)~~(c) The Delaware uniform claims and billing data set (~~UB-82~~ UB-04 or successor form) shall be completed for
53 all nursing home inpatient discharges beginning not sooner than June 30, 1995, and shall be submitted by all nursing homes
54 to the state agency according to a schedule established pursuant to subsection ~~(d)~~(e) of this section. All third-party payers
55 shall be required to accept the Delaware uniform claims and billing form. ~~Prior to this time, nursing~~ Nursing homes shall
56 ~~continue to~~ submit data electronically through the State agency's SFTP in a medium and in a format as agreed to upon by
57 the state agency and the Delaware Health Care Facilities Association.

58 ~~(e)~~(d) The state agency shall assure that any report of data specific to hospitals or nursing homes presents data that
59 are reliable, valid and informative. Such data shall reflect, as appropriate, factors including, but not limited to, the number
60 of patients, patient severity at admission, age of patients, the actual versus expected number of deaths, average length of
61 stay and case mix. The report shall explain each of these adjustments. The report also shall include information necessary
62 to adequately represent the operations of the individual hospital or nursing home such as whether ~~or not~~ physician charges
63 are included in the hospital charges, whether ~~or not~~ the hospital maintains medical education programs and the hospital's
64 payer mix. The state agency shall consult with the ~~Association of Delaware Hospitals~~ Healthcare Association and the
65 Delaware Health Care Facilities Association in identifying the various adjustment factors and information to be included.

66 ~~(d)~~(e) The state agency shall establish schedules for the timely submission of data and information collected
67 pursuant to this section. The state agency may grant waivers from such schedules for good cause shown.

68 § 2005. Cancer incidence data.

69 (a) Notwithstanding any provisions in this title to the contrary, the agency shall make available as public records
70 cancer incidence by census tract and by type of cancer. Such released data shall be assigned ~~consensus~~ census tract
71 geography from the most recent decennial census. If release of such information by census tract will explicitly or implicitly
72 identify any individual, the agency may combine data among contiguous census tracts, but only insofar as is necessary to
73 protect patient confidentiality.

74 (b) The agency shall create a detailed map of each county in Delaware that graphically illustrates the overall
75 incidence of cancer in each census ~~track~~. tract. The census ~~tracks~~ tracts will be identified on the maps and shall be color-
76 coded to designate the degree of cancer incidence in each ~~track~~. tract. These maps shall be created within 90 days of the
77 agency receiving the cancer incidence data.

78 (c) The agency shall post the maps created under subsection (b) of this section above on their website in a format
79 that can be easily accessed and read by the public.

80 § 2007. Sanctions.

81 (a) A hospital or nursing home which ~~willfully~~ willfully violates this chapter shall be reported to the Delaware
82 Department of Health and Social Services which may take such action as deemed appropriate to enforce compliance. No
83 action shall be taken by the Delaware Department of Health and Social Services without first providing an opportunity to
84 the hospital or nursing home for a fair hearing.

85 (b) A hospital or nursing home which is aggrieved by any action taken by the Delaware Department of Health and
86 Social Services pursuant to this section may, within 30 days of being notified of such action, appeal to the Superior Court.

87 § 2008. Immunity.

88 No person shall be subject to, and all persons shall be immune from, any claim, suit, liability, ~~damages~~ damages,
89 or any other recourse, civil or criminal, arising from any act or proceeding, decision or determination undertaken or
90 performed, or recommendation made while discharging any duty or authority under this chapter, so long as such person
91 acted in good faith, without malice, and within the scope of the person's duty or authority under this chapter or any other
92 provisions of the Delaware law, federal ~~law~~ law, ~~or regulations~~ or duly adopted rules and regulations providing for the
93 administration of this chapter, good faith being presumed until proven otherwise, with malice required to be shown by the
94 complainant.

95 § 2009. Data from other providers.

96 The Delaware Health Care Commission or its successor agency shall complete an analysis of the merits and
97 feasibility of collecting data from providers other than hospitals and nursing homes. Other providers to be considered shall
98 ~~include, but not be limited to,~~ include physicians, freestanding surgical centers, freestanding birthing centers and
99 freestanding emergency centers licensed in the State. The results of such analysis along with proposed enabling legislation,
100 as appropriate, shall be submitted to the Governor and the General Assembly by December 31, 1995.

SYNOPSIS

This Act updates Delaware's Uniform Health Data laws.

This Act corrects the form number of UB-82 to UB-04.

This Act provides that emergency department data is included in the data that the Hospital Discharge Technical Advisory Committee studies.

Finally, this Act makes technical corrections to conform to the requirements of the Legislative Drafting Manual.